



File No.: EXP202203586

RESOLUTION OF RECONSIDERATION APPEAL

Examined the reconsideration appeal filed by Ms. A.A.A. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated December 13, 2022, and based on the following:

FACTS

FIRST: On December 13, 2022, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202203586, proceeding to archive the preliminary investigation proceedings. This resolution was notified to the appellant on December 13, 2022, as evidenced by the acknowledgment of receipt in the file.

SECOND: The appellant submitted a reconsideration appeal on January 13, 2023, to this Spanish Agency for Data Protection, stating the following:

“Only. This party understands that the conclusion reached by that body regarding the removal of the video by my complainant and consequently the impossibility of identifying the author of the publication is premature, since the undersigned has been able to verify that the video is still published on the Telegram network, given that the person who originally published it has merely slightly altered the profile name to host said publication.

Thus, it is verified that the user named ***USUARIA.1 has changed her username to ***USUARIA.2 (with double t), maintaining her publications and specifically the video in question, which can be accessed through the following link: ***URL.1.

LEGAL GROUNDS

I

Competence

The Director of the Spanish Agency for Data Protection is competent to resolve this appeal in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

2/3

Response to the allegations presented

In relation to the statements made by the appellant, it should be noted that the contested resolution referred to the facts subject to complaint:

The existence of a video from the channel “***CANAL.1” through the link provided by the complainant and now appellant: ***URL.1.

During the preliminary investigation proceedings, it was verified that the video was not displayed and instead the following notice appeared: “If you have Telegram, you can contact ***EMAIL.1.”

Now in her appeal, she refers to a different address than the one she claimed at the time, which would constitute a new complaint. However, it has been verified that the same notice appears as in the previous case.

III

Conclusion

Consequently, in the present reconsideration appeal, the appellant has not provided new facts or legal arguments that would allow for a reconsideration of the validity of the contested resolution.

IV

Late Resolution

Due to reasons related to the functioning of the administrative body, therefore not attributable to the appellant, as of the date of this document, the mandatory pronouncement of this Agency regarding the present appeal has not been issued.

According to the provisions of Article 24 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the sense of administrative silence in the procedures for challenging acts and provisions is dismissive.

Nonetheless, and despite the time elapsed, the Administration is obliged to issue an express resolution and notify it in all procedures, regardless of their initiation form, as provided in Article 21.1 of the aforementioned LPACAP.

Therefore, it is appropriate to issue the resolution that concludes the procedure of the reconsideration appeal filed.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the reconsideration appeal filed by Ms. A.A.A. against the resolution of this Spanish Agency for Data Protection issued on December 13, 2022, in file EXP202203586.

SECOND: TO NOTIFY this resolution to Ms. A.A.A.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/3

In accordance with the provisions of Article 50 of the LOPDPGDD, this Resolution will be made public once it has been notified to the interested parties. Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDPGDD, and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

181-21112023

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es